

US FOOD AND DRUG ADMINISTRATION (FDA) - CDER
GUIDANCE FOR INDUSTRY: BOTANICAL DRUG DEVELOPMENT (REVISED JUNE 2016)
JURISDICTION: UNITED STATES / INTERNATIONAL

Regulatory Classification of Ayurvedic Products in the United States:

In the US, Ayurvedic formulations are primarily marketed under two pathways:

1. Dietary Supplements (under Dietary Supplement Health and Education Act - DSHEA 1994):

- Marketed for nutritional support without pre-market FDA approval.
- CANNOT claim to diagnose, treat, cure, or prevent any disease.
- May carry structure/function claims (with mandatory FDA disclaimer).
- If using a new botanical ingredient not marketed before Oct 15, 1994, a New Dietary Ingredient (NDI) notification must be submitted 75 days prior.

2. Botanical Drugs (IND/NDA Pathway):

- Products intended for therapeutic treatment of diseases.
- Must undergo clinical trials under an Investigational New Drug (IND) and New Drug Application (NDA).
- Chemistry, Manufacturing, and Controls (CMC): Batch-to-batch consistency must be verified using spectroscopic fingerprinting and biological assays, recognizing that botanicals have complex heterogeneous multi-chemical compositions.